



REFERRAL PARTNER / AFFILIATE AGREEMENT

Power CA

This Referral Partner / Affiliate Agreement ("Agreement") is entered into on this ____ day of _____, 20 ("Effective Date") between:

TBS TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at 2nd Floor, Muneer Complex, 130, Palani Road, Udumalpet, Tiruppur District, Tamil Nadu – 642126 (hereinafter referred to as "Company" or "Power CA");

AND

[Affiliate Legal Name], a [Company / LLP / Partnership Firm / Proprietary Concern], having its registered office at [Address] (hereinafter referred to as "Affiliate").

The Company and Affiliate are collectively referred to as the "Parties".

1. APPOINTMENT

1.1 The Company appoints the Affiliate as a **non-exclusive Referral Partner** to introduce prospective customers for the Power CA software.

1.2 This Agreement does not create any agency, partnership, joint venture, franchise, or employment relationship.

1.3 The Affiliate has no authority to bind, negotiate, contract, or make commitments on behalf of the Company.

2. SCOPE OF SERVICES

The Affiliate may:

- Refer prospective customers;
- Share Company-approved marketing materials;
- Facilitate introductions or coordinate demonstrations with Company representatives.

The Affiliate shall not:

- Collect subscription fees;
- Issue invoices;
- Offer discounts;
- Negotiate pricing;



Phone

+91 9842224635
+91 9629514635



Mail

tbsindiaudt@gmail.com
tbstechudt@gmail.com



Address

No. 130, II Floor, Muneer Complex,
Palani Road, Udumalpet, 642126.



- Modify product representations;
- Make binding commitments.

All subscription agreements shall be executed directly between the Company and the customer.

3. LEAD REGISTRATION & ATTRIBUTION

3.1 Commission shall be payable only for leads:

- a) Submitted in writing through Company-approved channel;
- b) Not previously known to or registered by the Company;
- c) Converted into paying subscribers within ninety (90) days of referral.

3.2 The Company shall determine lead validity acting reasonably and in good faith.

4. COMMISSION & TIER STRUCTURE

4.1 Definitions

“Net Subscription Fees” means subscription fees actually received by the Company excluding GST, discounts, credits, refunds, and chargebacks.

“Qualified Customer” means a customer validly referred under Clause 3 who enters into subscription agreement and makes payment.

4.2 Tier Classification (Reviewed Annually)

Affiliate commission shall be determined based on the number of new Qualified Customers generated during a financial year (April–March):

Tier	Annual New Qualified Customers	Year 1 Commission	Renewal Years 2–3	Renewal Years 4–
Silver	5 – 10	18%	8%	5%
Gold	11 – 25	22%	10%	5%
Platinum	26+	25%	12%	5%

Tier status shall apply prospectively for subscriptions generated in the following financial year.



4.3 Initial Subscription Commission

Affiliate shall earn commission at applicable Tier rate for Year 1 Net Subscription Fees received from each Qualified Customer.

Commission accrues only upon:

- Successful receipt of funds;
 - Expiry of refund period (if any).
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4.4 Renewal Commission

Affiliate shall be eligible for renewal commissions subject to:

- a) Subscription continuity without lapse exceeding 90 days;
- b) Affiliate remaining in compliance with this Agreement;
- c) Agreement remaining in force at time of renewal;
- d) Affiliate referring at least five (5) new Qualified Customers in the preceding rolling 12-month period.

Renewal commission shall be payable only up to five (5) subscription years from initial activation.

No commission shall be payable beyond Year 5.

4.5 Post-Termination Treatment

Upon termination:

- a) Affiliate shall receive commission only for payments received prior to termination;
- b) No commission shall be payable for renewals occurring after termination date unless termination was without cause by Company and mutually agreed in writing.

There shall be no lifetime commission entitlement.

4.6 Payment Terms

- Commissions shall be calculated quarterly;
 - Paid within 30 days of quarter end;
 - Subject to deduction of TDS under Income Tax Act, 1961;
 - Affiliate shall issue valid GST invoice if applicable.
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4.7 Adjustments & Clawback

Company may adjust or set-off commissions for:

- Refunds;
 - Chargebacks;
 - Pricing corrections;
 - Overpayments.
-

5. NO COMMISSION EVENTS

No commission shall be payable where:

- Customer already exists in Company database;
 - Customer payment is reversed;
 - Affiliate engaged in misrepresentation;
 - Agreement terminated for Affiliate breach.
-

6. INTELLECTUAL PROPERTY

6.1 All trademarks and intellectual property remain property of the Company.

6.2 Affiliate may use marketing materials solely in approved format.

6.3 Upon termination, all marketing use must cease.

7. REPRESENTATIONS & COMPLIANCE

Affiliate represents that it shall:

- Comply with applicable Indian laws;
 - Not make misleading or exaggerated claims;
 - Not claim endorsement by ICAI or Government;
 - Comply with the Digital Personal Data Protection Act, 2023;
 - Not engage in bribery or inducement practices.
-

8. DATA PROTECTION

Any personal data shared:

- Shall be used only for referral purpose;



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- Shall not be retained beyond necessity;
 - Shall be protected with reasonable safeguards.
-

9. NON-SOLICITATION

During the Term and twelve (12) months thereafter, Affiliate shall not:

- Solicit Company employees;
 - Induce customers to shift to competing software.
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10. INDEMNITY

Affiliate shall indemnify and hold harmless the Company from claims arising out of:

- Unauthorized commitments;
 - Regulatory violations;
 - Misrepresentation;
 - Breach of this Agreement.
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11. LIMITATION OF LIABILITY

Company's total liability under this Agreement shall not exceed commissions paid in preceding twelve (12) months.

12. TERM AND TERMINATION

12.1 Initial term shall be one (1) year and shall automatically renew unless terminated.

12.2 Either party may terminate with 30 days' written notice.

12.3 Immediate termination may occur upon fraud, misrepresentation, or legal violation.

13. FORCE MAJEURE

Neither party shall be liable for delay caused by events beyond reasonable control.



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14. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India.

Courts at Udumalpet, Tamil Nadu shall have exclusive jurisdiction.

15. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties and supersedes all prior communications.

SIGNATURE BLOCK

For TBS Technologies Private Limited

Authorized Signatory

Name:

Designation:

Date:

Signature:

For [Affiliate Name]

Authorized Signatory

Name:

Designation:

Date:

Signature:



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